

**RESOLUTION DECLARING TRANSPORTATION
IMPRACTICAL FOR THE 2022-2023 SCHOOL YEAR**

The Board of Education of the Brecksville-Broadview Heights City School District, Cuyahoga County, met in regular session this 23rd day of August 2023, with the following members present:

Mark Dosen ____
Tish Kwiatkowski ____
Ellen Kramer ____
Kathleen Mack ____
Brittany Wigman ____

_____ moved and _____ seconded the adoption of the following resolution:

WHEREAS, pursuant to section 3327.02 of the Revised Code, the Board of Education of the Brecksville-Broadview Heights City School District (“Board” or “Board of Education” or “District”) may determine that it is impractical to transport a pupil who is eligible for transportation to and from a school under section 3327.01 of the Revised Code after considering each of the following factors:

1. The time and distance required to provide the transportation
2. The number of pupils to be transported
3. The cost of providing transportation in terms of equipment, maintenance, personnel, and administration
4. Whether similar or equivalent service is provided to other pupils eligible for transportation
5. Whether and to what extent the additional service unavoidably disrupts current transportation schedules; and
6. Whether other reimbursable types of transportation are available

WHEREAS, in accordance with section 3327.02 of the Revised Code, the Board shall report its determination to the Ohio Department of Education and shall further issue a letter to the pupil’s parent, guardian, or other person in charge of the pupil, as well as issue a letter to the nonpublic or community school in which the pupil is enrolled with a detailed description of the reasons for which such determination was made; and

WHEREAS, after a determination declaring the impracticality of transportation is made pursuant to this Resolution, the Board shall offer to provide payment in lieu of transportation by informing the pupil’s parent, guardian, or other person in charge of the pupil of this Resolution and of the right of the pupil’s parent, guardian, or other person in charge of the pupil to accept the offer of payment in lieu of transportation or reject the Board’s offer of payment in lieu of transportation.

NOW, THEREFORE, BE IT RESOLVED based on the Board’s consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, the Board of Education hereby declares transportation impractical for the 2022-2023 school year via this Resolution for the pupils attending Al-Ihsan School as listed in Exhibit A, determined on an individual and case-by-case basis, based on: (1) there is only one (1) student(s) who requested transportation; (2) the costs associated with running an additional bus, which includes the hiring and training of a new bus driver; and (3) transportation of the student(s) would conflict and disrupt current routed public and non-public routes established by the District;

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, the Board of Education hereby declares transportation impractical for the 2022-2023 school year via this Resolution for the pupils attending Benedictine High School as listed in Exhibit B, determined on an individual and case-by-case basis, based on: (1) there is only one (1) student(s) who requested transportation; (2) the costs associated with running an additional bus, which includes the hiring and training of a new bus driver; and (3) transportation of the student(s) would conflict and disrupt current routed public and non-public routes established by the District;

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, the Board of Education hereby declares transportation impractical for the 2022-2023 school year via this Resolution for the pupils attending the Birchwood School of Hawken as listed in Exhibit C, determined on an individual and case-by-case basis, based on: (1) there are only five (5) student(s) who requested transportation; (2) the costs associated with running an additional bus, which includes the hiring and training of a new bus driver; and (3) transportation of the student(s) would conflict and disrupt current routed public and non-public routes established by the District;

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, the Board of Education hereby declares transportation impractical for the 2022-2023 school year via this Resolution for the pupils attending the Gerson School as listed in Exhibit D, determined on an individual and case-by-case basis, based on: (1) there is only one (1) student(s) who requested transportation; (2) the costs associated with running an additional bus, which includes the hiring and training of a new bus driver; and (3) transportation of the student(s) would conflict and disrupt current routed public and non-public routes established by the District;

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, the Board of Education hereby declares transportation impractical for the 2022-2023 school year via this Resolution for the pupils attending the Heritage Christian School as listed in Exhibit E, determined on an individual and case-by-case basis, based on: (1) there are only two (2) student(s) who requested transportation; (2) the costs associated with running an additional bus, which includes the hiring and training of a new bus driver; and (3) transportation of the student(s) would conflict and disrupt current routed public and non-public routes established by the District;

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, the Board of Education hereby declares transportation impractical for the 2022-2023 school year via this Resolution for the pupils attending Heritage Classical Academy as listed in Exhibit F, determined on an individual and case-by-case basis, based on: (1) there are only two (2) student(s) who requested transportation; (2) the costs associated with running an additional bus, which includes the hiring and training of a new bus driver; and (3) transportation of the student(s) would conflict and disrupt current routed public and non-public routes established by the District;

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, the Board of Education hereby declares transportation impractical for the 2022-2023 school year via this Resolution for the pupils attending Holy Family as listed in Exhibit G, determined on an individual and case-by-case basis, based on: (1) there are only two (2) student(s) who requested transportation; (2) the costs associated with running an additional bus, which includes the hiring and training of a new bus driver; and (3) transportation of the student(s) would conflict and disrupt current routed public and non-public routes established by the District;

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, the Board of Education hereby declares transportation impractical for the 2022-2023 school year via this Resolution for the pupils attending Holy Name as listed

in Exhibit H, determined on an individual and case-by-case basis, based on: (1) there are only three (3) student(s) who requested transportation; (2) the costs associated with running an additional bus, which includes the hiring and training of a new bus driver; and (3) transportation of the student(s) would conflict and disrupt current routed public and non-public routes established by the District;

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, the Board of Education hereby declares transportation impractical for the 2022-2023 school year via this Resolution for the pupils attending Incarnate Word Academy as listed in Exhibit I, determined on an individual and case-by-case basis, based on: (1) there are only four (4) student(s) who requested transportation; (2) the costs associated with running an additional bus, which includes the hiring and training of a new bus driver; and (3) transportation of the student(s) would conflict and disrupt current routed public and non-public routes established by the District;

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, the Board of Education hereby declares transportation impractical for the 2022-2023 school year via this Resolution for the pupils attending Julie Billiart as listed in Exhibit J, determined on an individual and case-by-case basis, based on: (1) there are only two (2) student(s) who requested transportation; (2) the costs associated with running an additional bus, which includes the hiring and training of a new bus driver; and (3) transportation of the student(s) would conflict and disrupt current routed public and non-public routes established by the District;

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, the Board of Education hereby declares transportation impractical for the 2022-2023 school year via this Resolution for the pupils attending Lawrence Upper School as listed in Exhibit K, determined on an individual and case-by-case basis, based on: (1) there are only four (4) student(s) who requested transportation; (2) the costs associated with running an additional bus, which includes the hiring and training of a new bus driver; and (3) transportation of the student(s) would conflict and disrupt current routed public and non-public routes established by the District;

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, the Board of Education hereby declares transportation impractical for the 2022-2023 school year via this Resolution for the pupils attending Magnificat High School as listed in Exhibit L, determined on an individual and case-by-case basis, based on: (1) there are only eight (8) student(s) who requested transportation; (2) the costs associated with running an additional bus, which includes the hiring and training of a new bus driver; and (3) transportation of the student(s) would conflict and disrupt current routed public and non-public routes established by the District;

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, the Board of Education hereby declares transportation impractical for the 2022-2023 school year via this Resolution for the pupils attending Padua Franciscan High School as listed in Exhibit M, determined on an individual and case-by-case basis, based on: (1) there are only ten (10) student(s) who requested transportation; (2) the costs associated with running an additional bus, which includes the hiring and training of a new bus driver; and (3) transportation of the student(s) would conflict and disrupt current routed public and non-public routes established by the District;

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, the Board of Education hereby declares transportation impractical for the 2022-2023 school year via this Resolution for the pupils attending St. Barnabas as listed in Exhibit N, determined on an individual and case-by-case basis, based on: (1) there are only ten (10) student(s) who requested transportation; (2) the costs associated with running an additional bus, which

includes the hiring and training of a new bus driver; and (3) transportation of the student(s) would conflict and disrupt current routed public and non-public routes established by the District;

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, the Board of Education hereby declares transportation impractical for the 2022-2023 school year via this Resolution for the pupils attending St. Charles Borromeo School as listed in Exhibit O, determined on an individual and case-by-case basis, based on: (1) there are only nine (9) student(s) who requested transportation; (2) the costs associated with running an additional bus, which includes the hiring and training of a new bus driver; and (3) transportation of the student(s) would conflict and disrupt current routed public and non-public routes established by the District;

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, the Board of Education hereby declares transportation impractical for the 2022-2023 school year via this Resolution for the pupils attending St. Columbkille as listed in Exhibit P, determined on an individual and case-by-case basis, based on: (1) there are only five (5) student(s) who requested transportation; (2) the costs associated with running an additional bus, which includes the hiring and training of a new bus driver; and (3) transportation of the student(s) would conflict and disrupt current routed public and non-public routes established by the District;

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, the Board of Education hereby declares transportation impractical for the 2022-2023 school year via this Resolution for the pupils attending St. Hilary School as listed in Exhibit Q, determined on an individual and case-by-case basis, based on: (1) there are only three (3) student(s) who requested transportation; (2) the costs associated with running an additional bus, which includes the hiring and training of a new bus driver; and (3) transportation of the student(s) would conflict and disrupt current routed public and non-public routes established by the District;

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, the Board of Education hereby declares transportation impractical for the 2022-2023 school year via this Resolution for the pupils attending St. Ignatius High School as listed in Exhibit R, determined on an individual and case-by-case basis, based on: (1) there are only eight (8) student(s) who requested transportation; (2) the costs associated with running an additional bus, which includes the hiring and training of a new bus driver; and (3) transportation of the student(s) would conflict and disrupt current routed public and non-public routes established by the District;

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, the Board of Education hereby declares transportation impractical for the 2022-2023 school year via this Resolution for the pupils attending St. Mary Byzantine School as listed in Exhibit S, determined on an individual and case-by-case basis, based on: (1) there are only three (3) student(s) who requested transportation; (2) the costs associated with running an additional bus, which includes the hiring and training of a new bus driver; and (3) transportation of the student(s) would conflict and disrupt current routed public and non-public routes established by the District;

BE IT FURTHER RESOLVED that the Brecksville-Broadview Heights City School District hereby offers the parent, guardian, or other person in charge of the pupil payment in lieu of providing transportation, and hereby directs the Superintendent and Treasurer or designee(s) to provide notification to the parent, guardian, or other person in charge of the pupil of the Board's determination and of the right to accept or reject this offer as set forth herein and in accordance with section 3327.02 of the Revised Code.

BE IT FURTHER RESOLVED that it is hereby found and determined that all formal actions of the Board concerning and relating to the adoption of this Resolution were adopted in an open meeting of the Board,

and that all deliberations of the Board and any of its committees that resulted in such formal action were open to the public when required by law, in full compliance with the law.

UPON ROLL CALL, on passage of the foregoing resolution, the vote was as follows:

	<u>Yea</u>	<u>Nay</u>
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____

EXHIBIT A – Al-Ihsan School

1. Leena Hasan

Exhibit B – Benedictine High School

1. Robert Scoville

Exhibit C – Birchwood School of Hawken

1. Aarav Ahuja
2. Alexander Tad-y
3. Charlotte Tad-y
4. Eshan Krish Karunakaran
5. Kritika Chahar

Exhibit D – Gerson School

1. Angeline Bican

Exhibit E – Heritage Christian School

1. Jeremiah Zaccardelli
2. Micah Zaccardelli

Exhibit F – Heritage Classical Academy

1. Claire Newman
2. Jack Newman

Exhibit G – Holy Family

1. Madison Csank
2. Makenzie Csank

Exhibit H – Holy Name

1. Paul Gordan
2. Cecilia Gordan
3. Christina Gordan

Exhibit I – Incarnate Word Academy

1. Cohen Vitaz
2. Lucy Vitaz
3. Sofia Milev
4. Harleen Kufleitner

Exhibit J – Julie Billiard

1. Olivia Giancola
2. Jackson Zaccardelli

Exhibit K – Lawrence Upper School

1. Emma Apanasewicz
2. Carter Domo
3. Gracie Horgan
4. Paige Mountain

Exhibit L – Magnificat High School

1. Adriana Carcioppolo
2. Alex Daprano
3. Allegra Carcioppolo
4. Anna Toman
5. Brianna Dzina
6. Camryn Dzina
7. Grace Marie Yonan
8. Keira Leneghan

Exhibit M – Padua Franciscan High School

1. Audrey Malcuit
2. Christian Mandaf
3. Daniel Allen
4. Jenna Marchak
5. Julia Malcuit
6. Justin Hill
7. Kendall Palange
8. Lucas Palange
9. Michael Malcuit
10. Sophia Hill

Exhibit N – St. Barnabas

1. George Tagliaferro
2. Jack Tagliaferro
3. William Walko
4. Elle Rote
5. Juliette Rote
6. Logan Cordiano
7. Louis Janki
8. Natalie Iacoboni
9. Nora Iacoboni
10. Lila Freilino

Exhibit O – St. Charles Borromeo School

1. Irena Gordan
2. Marcus Gordan
3. Michael Gordan
4. Sumon Gordan
5. Thomas Gordan
6. Blake Heston
7. Devon Heston
8. Gwendolyn Heston
9. Logan Heston

Exhibit P – St. Columbkille

1. Giulia Reginelli
2. Carter Palange
3. Michael Govang
4. Molly Palange
5. Chloe Bibbo

Exhibit Q – St. Hilary School

1. Lilitana Perozeni
2. Mia Perozeni
3. Astella Tartabini

Exhibit R – St. Ignatius High School

1. Arthur Reginelli
2. Michael Telzrow
3. Alexander Merheb
4. Colin Bibbo
5. Gabriel Guido
6. Jacob Merheb
7. Rafael Fini
8. Roman Fini

Exhibit S – St. Mary Byzantine School

1. David Kupar
2. Koustoutyn Kupar
3. Oleski Kupar